

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 513

BY BUSINESS COMMITTEE

AN ACT

RELATING TO THE BARBER AND COSMETOLOGY SERVICES ACT; AMENDING SECTION 54-5810, IDAHO CODE, TO REVISE CERTAIN QUALIFICATIONS FOR LICENSURE REGARDING COSMETOLOGISTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 54-5810, Idaho Code, be, and the same is hereby amended to read as follows:

54-5810. QUALIFICATIONS FOR LICENSURE -- INSTRUCTORS -- APPRENTICES -- STUDENTS. (1) To qualify for licensure under this chapter, an applicant for licensure must:

(a) Be at least sixteen and one-half (16 1/2) years of age at the time of application;

(b) Have completed at least two (2) years of high school or have attained an equivalent education as determined by the board;

(c) Pass an examination for the occupation in which the applicant is seeking licensure, which examination shall be conducted or approved by the board; and

(d) Prove to the satisfaction of the board that the applicant has not engaged in conduct that would constitute grounds for discipline under section 54-5823, Idaho Code.

(2) Except as otherwise provided, and in addition to the requirements listed in subsection (1) of this section, an applicant for licensure:

(a) As a barber, must have:

(i) Completed and graduated from a course of instruction of at least nine hundred (900) hours in a barber school approved by the board; or

(ii) Completed at least one thousand eight hundred (1,800) hours as an apprentice in an apprenticeship that covered all aspects of the practice of barbering;

(b) As a barber-stylist, must have:

(i) Completed and graduated from a course of instruction of at least one thousand five hundred (1,500) hours in a barber school approved by the board; or

(ii) Completed at least three thousand (3,000) hours as an apprentice in an apprenticeship that covered all aspects of the practice of barber-styling;

(c) As a cosmetologist, must have:

(i) Completed and graduated from a course of instruction of at least ~~one thousand six hundred (1,600)~~ one thousand (1,000) hours in a cosmetology school approved by the board; or

- 1 (ii) Completed at least ~~three thousand two hundred (3,200)~~ two
2 thousand (2,000) hours as an apprentice in an apprenticeship that
3 covered all aspects of the practice of cosmetology;
- 4 (d) As an electrologist, must have:
- 5 (i) Completed and graduated from a course of instruction of at
6 least six hundred (600) hours in a school approved by the board; or
7 (ii) Completed at least one thousand two hundred (1,200) hours as
8 an apprentice in a cosmetology establishment under the direct per-
9 sonal supervision of a licensed electrologist instructor;
- 10 (e) As an esthetician, must have:
- 11 (i) Completed and graduated from a course of instruction of at
12 least six hundred (600) hours in a school approved by the board; or
13 (ii) Completed at least one thousand two hundred (1,200) hours
14 as an apprentice in a cosmetology establishment under the direct
15 personal supervision of a licensed cosmetology instructor. Such
16 establishment must have at least one (1) licensed esthetician
17 on-site in accordance with board rules; and
- 18 (f) As a nail technician, must have:
- 19 (i) Completed and graduated from a course of instruction of at
20 least four hundred (400) hours in a school approved by the board;
21 or
22 (ii) Completed at least eight hundred (800) hours as an apprentice
23 in a cosmetology establishment under the direct personal super-
24 vision of a licensed cosmetology instructor. Such establishment
25 shall have at least one (1) licensed nail technician on-site in ac-
26 cordance with board rules.
- 27 (3) To qualify as an instructor of barbering, barber-styling, cosme-
28 tology, electrology, esthetics, or nail technology, an applicant must:
- 29 (a) Hold a current license in the profession or closely related profes-
30 sion, as determined by the board, for which the applicant seeks to in-
31 struct;
- 32 (b) Have worked for at least five (5) of the last seven (7) years as a li-
33 censed barber, barber-stylist, cosmetologist, electrologist, estheti-
34 cian, or nail technician, or have satisfactorily completed:
- 35 (i) A minimum six (6) month teacher's course of instruction in one
36 (1) of the specialties described in this subsection; or
37 (ii) A minimum three (3) month teacher's course of instruction in
38 a school of one (1) of the specialties described in this subsec-
39 tion, if the applicant has at least two (2) years of experience as
40 a licensee in one (1) of the specialties described in this subsec-
41 tion; and
- 42 (c) Have completed twelve (12) college credit hours or equivalent edu-
43 cation, as determined by the board, or pass an examination approved by
44 the board.
- 45 (4) To be qualified to hold an apprenticeship for purposes of this chap-
46 ter, a person must:
- 47 (a) Meet the qualifications set forth in paragraphs (a), (b), and (d) of
48 subsection (1) of this section; and
49 (b) Be registered as an apprentice with the board.

1 (5) To be considered a student for purposes of this chapter, a person
2 must:

3 (a) Meet the qualifications set forth in paragraph (b) of subsection
4 (1) of this section; and

5 (b) Be registered as a student in a licensed barber school or cosmetol-
6 ogy school.

7 (6) A high school student enrolled in a licensed school may be under
8 sixteen and one-half (16 1/2) years of age while accruing the course of in-
9 struction hours required for licensure.

10 SECTION 2. An emergency existing therefor, which emergency is hereby
11 declared to exist, this act shall be in full force and effect on and after
12 July 1, 2026.